

JUSTIFICATION REVIEW DOCUMENT

Program/Equipment: Architect-Engineer (A-E) Type C Services in Support of for Project ZRVL092008 Renovate Building 1 Zanesville, OH

Authority:

10 U.S.C. 2304(c)(1), as implemented by FAR 6.302-1(a)(2) and 6.302-1(c), Only one responsible source and no other supplies or services will satisfy agency requirements.

Amount:

Prepared by: *Ryan Thompson* DSN: 492-4237
Contract Specialist Date: 30 Apr 25
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Engineer/Project Manger Date: 30 Apr 25
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Reviews: I have reviewed this justification and find it adequate to support other than full and open competition.

Office of General Counsel:

Typed Name: LCT Joseph Schwade

DSN: 336-7263

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Date:

Justification and Approval for Other than Full and Open Competition

1. Contracting Activity: W50S8P

2. Description of Action: 121 Civil Engineering Squadron requests a sole source award to CH2M HILL - HDR JV. The Government projects award for 2025 and fiscal year 2023, SRM funds will be used as this is within the original scope of work from the Type C Service Option CLIN in Contract W50S8P-22-C-0002 that was awarded in FY23. Due to a system error in the transition of the original contract from the legacy contract writing system to the new Army Contract Writing System (ACWS) this action can not be accomplished as a modification and requires a new standalone contract. An acquisition plan is not required because this procurement does not meet the threshold at Defense Federal Acquisition Regulation Supplement 207.103(d)(i)(B).

3. Description of Services: This is an Architect-Engineer (A-E) requirement to perform additional Type C services in support of the construction of ZRL092008 Renovate Building 1 at Zanesville, Ohio. The construction contract was awarded on 10 Apr 2023. The period of performance of this A-E action will mirror the construction contract award (reference construction solicitation W50S8P-23-C-0001) scheduled to end on 30 September 2025. There are no options required for this acquisition. The independent government estimate for this contract is

Type C services include documenting and providing answers to Contractor's requests for information (post award), review of submittals, attendance and records at job progress meetings, review of lab results, preparation of as-built drawings, multiple site visits to inspect the progress and quality of construction to ensure the construction contractor is following the approved design.

4. Authority Cited:

10 U.S.C. 2304(c)(1), as implemented by FAR 6.302-1(a)(2) and 6.302-1(c), Only one responsible source and no other supplies or services will satisfy agency requirements. Also, NGB PIM 2023-01 Rev 1 10 Jan 2023.

5. Reason for Authority Cited: This requirement is a follow-on award to CH2M HILL - HDR JV. The requirement was previously negotiated and awarded via contract W50S8P-22-C-0002. That award included Type B (code and criteria review) and Type C services for the design of the ZRL092008 Renovate Building 1.

Because CH2M HILL - HDR JV designed and certified the drawings and specifications and is liable for the quality of their design, it is economical and efficient to award the Type C services as a sole source follow-on contract.

There is tremendous performance and liability risk associated with another A-E firm taking over the Type C services for a project that was designed by a different firm. Having the original designer, CH2M HILL - HDR JV, on contract to perform the construction phase services is necessary for the Government to ensure responsibility for their design, including ensuring the design is constructible, maintainable and

operable, that the project documentation is clear, sufficiently detailed, accurate and coordinated, and contains minimal errors.

An award to a new A-E other than CH2M HILL - HDR JV would increase the risk associated with these issues and potentially affect the Government's rights under FAR 52.236-23, Responsibility of the Architect-Engineer Contractor, if another A-E were to represent or attempt to revise the current drawings and/or specifications. This clause states that the "Contractor shall be responsible for the professional quality, technical accuracy, and the coordination of all designs, drawings, specifications, and other services furnished by the Contractor". However, if a new A-E were to make recommendations during the Type C services to revise or deviate from the original drawings or specifications, any liability resulting from those changes could not be attributed to the original A-E. This could potentially create a dangerous and complicated scenario if the Government needed to hold the responsible A-E party liable for any errors or deficiencies in the designs, drawings, and/or specifications.

6. Efforts to Obtain Competition: No efforts were made to obtain competition for this one-time requirement due to the rationale described in paragraph 5. This Justification Document will be made public after award through the Government Point of Entry in accordance with FAR 6.305.

7. Actions to Increase Competition: No actions were taken to increase competition since this is a one-time requirement following on to a previously competed project.

8. Market Research: There are many large and small businesses, to include firms of all socioeconomic categories, capable of fulfilling this need for the Government. Unfortunately, all firms, other than CH2M HILL - HDR JV, would likely carry more cost and performance risk than CH2M HILL - HDR JV. Since CH2M HILL - HDR JV previously completed the Type A services which included the basis of design (specifically the design intent), and the development of the project concept, and associated site investigations as well as the Type B services which included the design narrative and the development of the construction documents for the forthcoming construction project, this document has been prepared to justify a sole source award to CH2M HILL - HDR JV.

9. Interested Sources: A listing of interested sources was not solicited or received for this acquisition.

10. Other Facts: This contract is for additional Type C services due to unforeseen sight conditions requiring a significant redesign to project ZRVL092008 beyond what would have been reasonably included in the initial Contract W50S8P-22-C-0002.

Procurement History

- (1) Contract numbers and dates of the last several contracts for these same requirements.

- a. *W9133L-15-D-0004 9M03 20170829 Type A & B Services*

b. W50S8P-22-C-0002 20220721 Type B and C Services

(2) The competitive status of these actions.

- a. W9133L-15-D-0004 9M03; Full and Open
- b. W50S8P-22-C-0002; Other than full and open

(3) Authority previously cited if less than full and open competition was used.

- a. W50S8P-22-C-0002; 10 U.S.C. 2304(c)(1), as implemented by FAR 6.302-1(a)(2) and 6.302-1(c), Only one responsible source and no other supplies or services will satisfy agency requirements.

11. Technical Certification: I certify that the supporting data under my cognizance which are included in the justification are accurate and complete to the best of my knowledge and belief.

Typed Name: Michael Hissom
Title: Engineer/Project Manager

Date: 4/30/25

Signature: HISSOM.MICHAEL.LEE.1074091667
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Date: 2025.04.30 10:07:13 -04'00'

12. Fair and Reasonable Cost Determination: Using the Independent Government Estimate that was developed using BSC-JV SF330, SF330 Supplemental proposed team and AE NEXT labor rates for BSC-JV for FY25, I hereby determine that the anticipated cost to the Government for this contract action will be fair and reasonable. Certified cost or pricing data could not be obtained as per FAR 15.403-1(a) I hereby determine that the anticipated cost or price to the Government for this contract action will be fair and reasonable.

This determination will be made using the following: ☐ cost analysis ☐ price analysis ☐ should cost ☒ IGCE ☐ audit: ☐ other:

As a part of this basis, certified cost or pricing data:

☒ will not be required and the following exception applies (FAR 15.403):

- ☒ Prices that will be agreed upon are based on prices set by law or regulation.
- ☒ The estimated cost of the contract action is less than the threshold for certified cost or pricing data.

Typed Name: James Andrews
Title: Contracting Officer

Date: 4/30/25

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Date: 2025.04.30 09:36:32 -04'00'

13. Contracting Officer Certification: I certify that this justification is accurate and complete to the best of my knowledge and belief.

Typed Name: James Andrews
Title: Contracting Officer

Date: 4/30/25

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